

		set forth in the Discovery Act) specifically addressed to the supplemental responses. Plaintiff's request for sanctions related to these motions are denied. Plaintiff Aurora Solutions, LLC's motions to compel further responses to request for production of documents, set one as to defendant National Payment Systems, LLC and defendant Eventus Holdings, LLC are GRANTED. Defendants shall serve code compliant responses, without objections, to the requests with in ten days. Any other responsive documents shall be served on plaintiff within ten days. To the extent defendants assert a privilege as to some or all of the responsive documents, they shall provide a privilege log within 10 days identifying the alleged protected documents. Plaintiff's request for sanctions related to these motions is GRANTED. Defendants shall each pay the sum of \$1,570 to plaintiff through plaintiff's counsel. Payment shall be made within 30 days. Plaintiff shall give notice.
60.	Sowell v. City of Anaheim 2024-01394352	Defendants City of Anaheim's and Jared Moye's Motion to Declare Plaintiff Major R. Sowell a Vexatious Litigant, and for Order Requiring Security and Prefiling Authorization is GRANTED. (<u>See</u> Code Civ. Proc. § 391.1). The court grants defendants Request of Judicial Notice ("RJN") filed at ROA 24. <u>Brief overview of the allegations.</u> Plaintiff appears to allege that he was improperly terminated in February 2020 from his employment by Defendant City of Anaheim. The improper conduct allegedly included retaliation for whistleblowing activities. <u>Vexatious Litigant statute.</u> Defendants filed their motion pursuant to C.C.P. § 391. Relevant to this motion, Section 391(b) defines a "vexatious litigant" as one who does either of the following:

	(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. Cases interpreting the vexatious litigant statute explain that its provisions “are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly, waste the time and resources of the court system and other litigants.” <i>Shalant v. Girard</i> (2011) 51 Cal. 4th 1164, 1169 (citation omitted); <u>see also</u> <i>In re Marriage of Deal</i> (2020) 45 Cal. App. 5th 613, 618 (same). The in propria persona litigant can be declared vexatious by “relitigate[ing] or attempt[ing] to relitigate matters previously determined against him or her, [or] repeatedly pursu[ing] unmeritorious or frivolous tactics in litigation. . . .” <i>Shalant</i>, at 1169-1170. <u>Analysis.</u> This is not the first litigation commenced by plaintiff related to his February 2020 termination. Previously, plaintiff filed litigation involving that termination in 2020, initially commenced in Los Angeles County and transferred to Orange County in case 2022-01239814. (RJN A). That case was dismissed with prejudice following a demurrer (RJN C), and a judgment entered June 13, 2022. (RJN F). A review of the docket from the prior case reveals that no appeal was taken from the judgment. The evidence submitted in support of this motion establishes that plaintiff filed seven separate actions in 2024 related to the same February 2020 termination, all of which raise virtually the same allegations. (<u>See</u> Decl. of Maya; Exh. A). Each of these actions named
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